

HEADNOTE

“The Court authorizes an alternative method of service (R. 275.1 RoP) only if the service could not be effected. The method already effected by the Court is not considered to constitute an alternative method. The Hague Service Convention: If the registered letter has been received by the Central Authority, a delay of 10 days from the date of sending the registered letter shall not be considered as a failure of service.”

COURT
Local Division in Paris

PROCEEDINGS
Infringement action

PATENT
EP3000239

System and method for universal
control of electronic devices

KEYWORDS

Service of documents

The Hague Service Convention

Alternative service methods

Rule 275 Service of the Statement of claim by an alternative method or at an alternative place

SUMMARY

The Local Division in Paris ruled on an infringement action. The patent at issue relates to a system and method for universal control of electronic devices. According to the headnotes of the decision, alternative methods of service under Rule 275.1 of the Rules of Procedure may only be used when standard service methods have proven unsuccessful. The Hague Service Convention provides that when a registered letter reaches the Central Authority, a ten-day delay from the date of sending shall not automatically constitute a failure of service.